

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLHEZ

STIPULATION AND ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF JEAN MATHEWS-POWERS, M.A., LPC, LICENSE NO. 38

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Jean Mathews-Powers, M.A., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The Board of Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on August 4, 1989. Respondent was issued license number 38. Respondent was licensed to practice professional counseling at all times relevant to this case.
3. On or about June 11, 1992, the State Grievance Board received a complaint alleging violations of the mental health statute by respondent. The information indicated actions that involved dual relationships and practicing below generally accepted standards of practice.
4. Following an investigation of the complaint and pursuant to its authority under § 12-43-705(1), C.R.S. (1991), the Board determined that reasonable grounds existed to initiate action regarding respondent's Colorado license to practice professional counseling.
5. The Board, therefore, authorized its legal counsel the Colorado Attorney General to initiate action regarding respondent's license to practice professional counseling in Colorado.
6. The Board has not filed its notice of charges and has not commenced a formal proceeding against respondent's license to practice professional counseling in Colorado.

7. Respondent understands she has the right to a formal disciplinary hearing, pursuant to § 12-43-705, C.R.S. (1991), with respect to the complaint filed against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; admits to the facts and conduct contained in paragraph 8 below; relieves the Board of its burden of proving the facts and conduct contained in the complaint; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that, pursuant to § 12-43-705(5), C.R.S. (1991), she has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

8. Respondent admits and agrees that she has a physical or mental disability which renders her unable to treat her clients with reasonable skill and safety or which may endanger the health or safety of persons under her care in violation of §12-43-704(1)(f), C.R.S. (1991).

9. The Board, by this stipulation and order and pursuant to §12-43-705(3)(c), C.R.S. (1991), hereby orders that respondent's license to practice professional counseling in the state of Colorado will be on probation for a period of three years, which period will commence if and when she ever again engages in any professional counseling and psychotherapy practice in the state of Colorado. Should respondent decide to again practice professional counseling and psychotherapy she shall notify the Board that she intends to engage in professional counseling and psychotherapy practice. Respondent shall not engage in professional counseling and psychotherapy practice, after notifying the Board of her intent to practice, until she:

a. Establishes to the board, through evaluation by a Board-approved evaluator, that she is physically and mentally able to treat clients with reasonable skill and safety to her clients and would not endanger the health or safety of persons under her care.

b. Obtains a Board-approved practice monitor.

c. Obtains a Board-approved therapist if required based on the recommendation of the evaluator.

d. Submits the necessary application and information to the Board for inclusion in the Grievance Board Data Base.

10. The three year period shall not begin to run until a practice monitor and therapist(if applicable) are approved by the

Board. It shall be respondent's responsibility to inform the Board that she intends to engage in professional counseling and psychotherapy practice and take the necessary action prior to beginning such professional counseling and psychotherapy practice. Failure to so notify the Board or take the required action shall constitute a violation of this stipulation and order, and subject respondent to disciplinary action for such violation. During the period of probation respondent can practice professional counseling and psychotherapy only if she complies with all conditions of the probation and has a practice monitor and therapist (if applicable) in place.

11. The conditions of the probation that would take effect if respondent again practices professional counseling and psychotherapy are:

a. Respondent will strictly observe the prohibition against dual relationships and assure that she does not have any relationship with any client other than a professional therapeutic relationship.

b. Respondents practice of professional counseling and psychotherapy must be supervised by a Board-approved monitor ("practice monitor"), who both supervises and monitors respondent's practice of professional counseling and psychotherapy, and reports in writing to the Board in accordance with this stipulation and order.

(i) The practice monitoring shall consist of individual face-to-face meetings that occurs for at least one hour, or such longer time as the practice monitor deems necessary, following every twenty hours of client contact. During these meetings, respondent and her practice monitor must review and discuss each of respondent's active cases at least once every month to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with reasonable skill and safety to her clients.

(ii) The practice monitor is authorized to and shall examine such client records and case files maintained by respondent as the practice monitor deems appropriate in order to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with reasonable skill and safety to her clients.

(iii) The practice monitor must report the results of her/his supervision to the Board in writing and

send a copy of each report to the respondent. The practice monitor must submit her/his first report by the fifth day of the month following the first full month after approval of the practice monitor. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e., on a monthly basis) for the first 12 months of the practice monitoring. At the conclusion of the first 12 months, unless otherwise ordered by the Board, the practice monitor shall submit her/his reports by the fifth day of every third month (i.e., on a quarterly basis) for the remainder of the practice monitoring period.

(iv) If the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders her unable to treat persons under her care with reasonable skill and safety, he/she shall report this opinion and reasons for reaching that opinion to the Board. The practice monitor shall make such report, in writing, within 48 hours of forming her/his opinion. The practice monitor shall send a copy of the report to the respondent when s/he sends the report to the Board.

(v) After Board approval of the practice monitor, respondent and her practice monitor shall enter into a written contract for supervision. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this stipulation and order and the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that notification, informing each professional counseling and psychotherapy client that respondent's practice is supervised and giving the name, address and telephone number of the supervisor, is provided to each client. This notification may be provided in a mandatory disclosure statement. The first report shall acknowledge that such notification has been provided to each professional counseling and psychotherapy client.

(vi) Either respondent or her practice monitor may terminate the supervisory relationship on written notice to the other and the Board not less than 30 days before the date of termination. The notice

shall state the reason for the termination. In the event of termination, respondent shall not practice professional counseling and psychotherapy without first obtaining another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this stipulation and order.

(vii) Respondent shall not practice professional counseling and psychotherapy without an approved practice monitor in place during the period of probation.

c. Respondent shall not supervise or consult with other persons for the purpose of those other persons providing professional counseling, as defined in § 12-43-601(4), C.R.S. (1991) or psychotherapy, as defined in § 12-43-701(9), C.R.S. (1991), to clients unless respondent has notified the Board that she is resuming the practice of professional counseling and psychotherapy and has a Board approved practice monitor in place. Any such supervision or consultation shall be supervised by respondent's practice monitor. The conditions of paragraph 11b apply to the practice monitor's supervision of respondent's supervision of or consultation with others who are providing professional counseling or psychotherapy to clients.

d. Should defendant indicate to the Board her intent to commence the practice of professional counseling and psychotherapy she shall undergo a mental status evaluation pursuant to paragraph 9a. The evaluator shall, as part of the evaluation, determine whether respondent should undergo therapy. The evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted with findings, recommendations and an opinion of whether respondent should undergo therapy. Should the evaluator recommend that respondent does not need to undergo therapy, and the Board agrees with this recommendation, all other requirements under this paragraph 11d shall not apply to respondent. Should the evaluator recommend that respondent undergo therapy, and the Board agrees with this recommendation, respondent shall undergo therapy with an individual approved by the Board ("therapist"), who both conducts therapy and reports in writing to the Board in accordance with this stipulation and order.

(i) The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every week unless otherwise approved by the Board based on the recommendations of the therapist.

(ii) The therapist shall report to the Board in writing both the progress of the therapy and whether or not defendant is able to practice professional counseling and psychotherapy with reasonable skill and safety to her clients and in accordance with generally accepted standards of practice, and must send a copy of each report to the practice monitor and respondent. The therapist must submit her/his first report by the fifth day of the month following the first full month of the therapy. The therapist shall submit subsequent reports by the fifth day of every month thereafter i.e., on a monthly basis) for the first 12 months. At the conclusion of the first 12 months, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month thereafter (i.e., on a quarterly basis).

(iii) In the first report, the therapist shall state that s/he has received and read a copy of this stipulated and order and the Board's file, and must state that s/he understands the duties and responsibilities s/he is undertaking as defendant's therapist.

(iv) If, at any time, the therapist is of the opinion that defendant is not practicing psychotherapy in a manner which meets the generally accepted standards of practice or has a physical or mental disability which renders her unable to treat with reasonable skill and safety to her clients or which may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for the opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to the practice monitor and defendant when s/he sends the report to the Board.

(v) Either defendant or her therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, defendant agrees not to practice professional counseling and psychotherapy without first obtaining another Board-approved therapist, who shall conduct therapy with defendant and report to the Board in accordance with this stipulation and order.

(vi) Respondent shall not practice professional counseling and psychotherapy if she is not undergoing therapy, unless and until the Board modifies the

requirement that she undergo therapy.

e. Respondent shall complete a minimum of thirty contact hours of Board-approved graduate level education in areas of boundary issues, dual relationships, record keeping, and ethical standards relating to boundaries and dual relationships. Upon completion of the required education respondent shall certify to the Board her completion of this educational requirement. Any appropriate education undertaken after the effective date of this stipulation and order may be used to satisfy this education requirement.

f. Respondent is responsible for the reports due under this stipulation and order and must take reasonable steps to assure that her practice monitor and therapist (if applicable) report to the Board in accordance with this stipulation and order. The failure of the practice monitor or therapist (if applicable) to submit reports to the Board on a timely and regular basis, in accordance with the terms of this stipulation and order may be construed as a violation of this stipulation and order.

g. Respondent shall pay all costs or expenses incurred in complying with the terms of this stipulation and order.

h. Respondent agrees that she will provide or allow her practice monitor, evaluator, and/or therapist (if applicable) to provide medical or psychological records or information to the Board in the event the practice monitor, evaluator, or therapist determines that she is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders her unable to treat her clients with reasonable skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to the practice monitor, evaluator or therapist if the practice monitor, evaluator or therapist determines that she is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders her unable to treat her clients with reasonable skill and safety or which may endanger the health and safety of persons under her care.

12. Respondent may request that the Board review and modify the practice monitoring requirements or therapy requirements (if applicable) based on the recommendations of the practice monitor or therapist, at the end of twelve months after Board approval of the practice monitor or therapist or such later date as the prac-

tice monitor or therapist deems appropriate.

13. The Board will review the status of respondent prior to the expiration of the period of probation. The probation requirement for respondent is subject to continuation, amendment, or revision if the practice monitor and/or the therapist (if applicable) feel that continuation of the probation is appropriate to assure that respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with reasonable skill and safety for her clients, and the Board, based on such recommendation(s), determines that such action is necessary to protect the public health, safety, or welfare.

14. Any violation of this stipulation and order or any unfavorable report from the practice monitor may, in the discretion of the Board, constitutes grounds for action pursuant to § § 12-43-701 to 12-43-711, C.R.S. (1991). This stipulation and order shall be admissible as evidence in any proceeding or hearing held to determine whether respondent complied with this stipulation and order and/or §12-43-701 to 12-43-711, C.R.S. (1991), and at any subsequent inquiry related to licensure of respondent.

15. The requirements of this stipulation and order shall continue in effect throughout any administrative or judicial proceeding.

16. All time periods stated in this stipulation and order run only while respondent is engaged in the practice of psychotherapy in the State of Colorado, they are tolled and suspended at all other times.

a. If after respondent again commences the practice of professional counseling and psychotherapy, she then discontinues her practice of professional counseling and psychotherapy, she shall notify the Board, in writing, within thirty (30) days. This notification shall inform the Board that she has discontinued the practice of professional counseling and psychotherapy and the date she discontinued her practice. The period of probation is tolled during any time when she is not practicing psychotherapy in the State of Colorado.

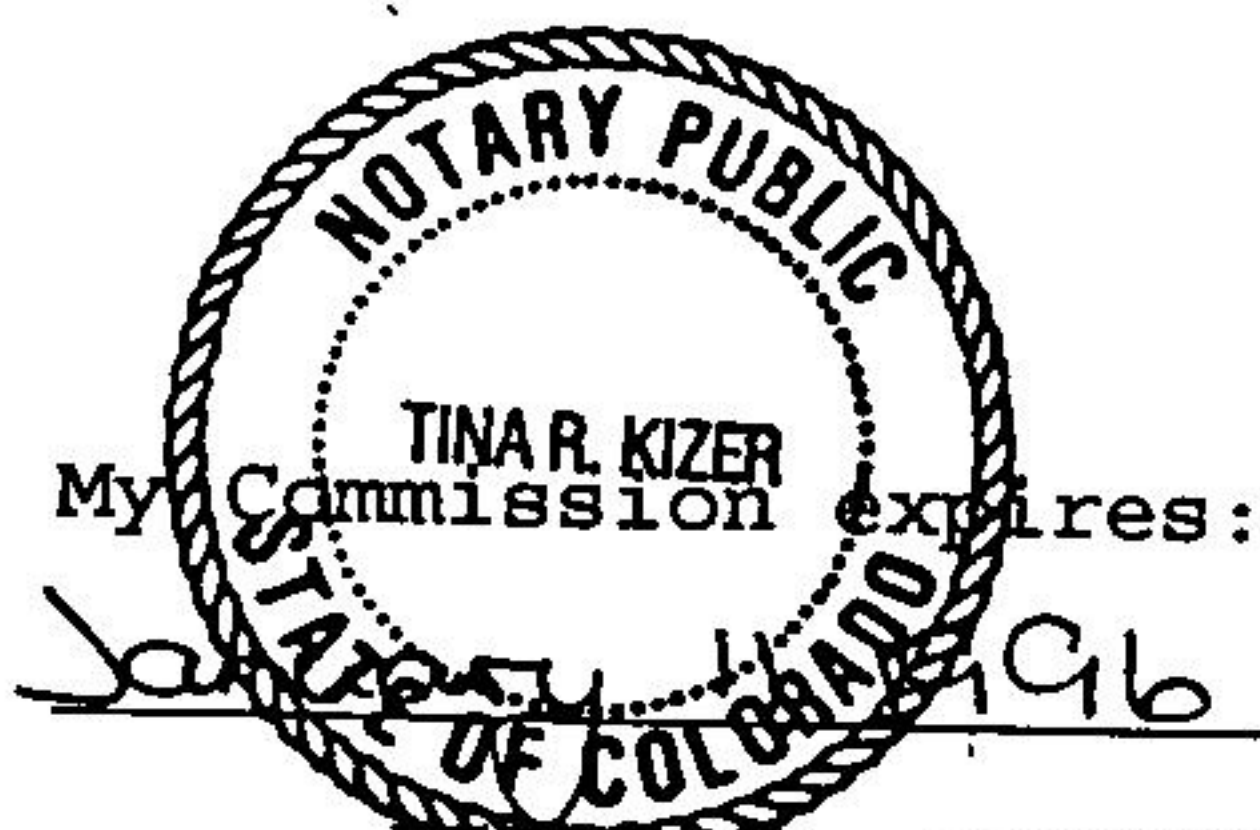
b. In the event respondent moves to another jurisdiction after again commencing the practice of professional counseling and psychotherapy in the state of Colorado and during the period of probation required by this stipulated and order, respondent shall notify the Board, in writing within thirty (30) days of her move, of her new address and of the date on which she relocated. The period of probation is tolled while respondent is not practicing in Colorado.

17. In the event respondent returns to Colorado to resume the practice of professional counseling and psychotherapy in Colorado while still subject to the period of probation she shall notify the Board of her address in Colorado and the date of her return to Colorado. Respondent shall comply with all terms of probation prior to resuming practice.
18. As used in this stipulation and order, "engaged in the practice of professional counseling", "professional counseling services", and "practice of professional counseling" shall have the same meaning as "professional counseling" defined in §12-43-601(4), C.R.S. (1991); and "the practice of psychotherapy", shall have the same meaning as "psychotherapy" found in §12-43-701(9), C.R.S. (1991).
19. Respondent may engage in the provision of Guardian-at-Litem and mediation services that do not constitute the practice of professional counseling as defined in §12-43-601(4), C.R.S. (1991) or psychotherapy as defined in §12-43-701(9), C.R.S. (1991) without being subject to the provision of this stipulation and order.
20. This stipulation and order settles all complaints against respondent pending with the Grievance Board as of the date this stipulation and order is executed.
21. Respondent enters into this stipulation and order voluntarily, without coercion, and after being fully advised both as to her right to a hearing and as to the consequences of this stipulation and order.
22. The Board order resulting from this stipulation and order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to §12-43-705, C.R.S. (1991); §24-4-105, C.R.S. (1988); and the Board's rules.
23. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.
24. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.
25. This stipulation and order shall take effect on acceptance and signature by the Board.

26. This stipulation and order is a public record.

Jean Mathews-Powers
JEAN MATHEWS-POWERS, M.A., LPC
Respondent

Subscribed and sworn to before me in the County of
ARAPAHOE, State of Colorado, this 27th day of
June 1994.



Tina R. Kizer
NOTARY PUBLIC

ACCEPTED, SIGNED, AND ORDERED this 8th day of July,
1994.

COLORADO STATE GRIEVANCE BOARD

Clair Villano
By: CLAIR VILLANO
Chair

APPROVED AS TO FORM

FOR THE RESPONDENT:

Susan B. Levy
SUSAN B. LEVY
Suite 700
650 South Cherry Street

FOR THE ATTORNEY GENERAL:

James F. Carr
JAMES F. CARR, 9343
Assistant Attorney General
Regulatory Law Section

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RB GB DLIQQ

ORDER TO CEASE AND DESIST

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
PRACTICE OF PROFESSIONAL COUNSELING AND PSYCHOTHERAPY IN
THE STATE OF COLORADO BY JEAN MATHEWS, M.A., LPC, LICENSE
NO. 38 AKA JEAN MATHEWS-POWERS, M.A., LPC

Respondent.

TO: JEAN MATHEWS, M.A., LPC AKA JEAN MATHEWS-POWERS, M.A., LPC

The State Grievance Board ("Board") having reviewed all proceedings regarding Jean Mathews, M.A., LPC, AKA Jean Mathews-Powers, M.A., LPC ("respondent" or "Mathews") including the Stipulation and Order, material relating to the case resulting in the Stipulation and Order, information from respondent and her evaluator, and information regarding respondent's practice of professional counseling and psychotherapy, HEREBY FINDS:

1. That respondent is a Licensed Professional Counselor and psychotherapist in the state of Colorado, as such she is subject to the jurisdiction of the State Grievance Board pursuant to C.R.S. §§12-43-701 to 711.

2. Respondent was the subject of a complaint regarding her practice of professional counseling and psychotherapy in June, 1992. The complaint was resolved through a Stipulation and Order entered into by the Grievance Board and respondent on or about July 8, 1994.

3. In the Stipulation and Order respondent admits that she has a physical or mental disability which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care (paragraph 8 of the Stipulation and Order which is Attachment 1 to this Cease and Desist Order).

4. The terms of the Stipulation and Order require that respondent establish through evaluation that she is physically and mentally able to treat clients with reasonable skill and safety and would not endanger the health or safety of persons under her care before she may practice professional counseling and psychotherapy. Respondent must also have a Board-approved practice monitor;

therapist if required based on the evaluation; and be registered in the Grievance Board Data Base before she may engage in the practice of professional counseling and psychotherapy (paragraph 9 in Attachment 1).

5. Respondent notified the Board of her intent to practice professional counseling and psychotherapy and obtained a Board-approved evaluator in conformance with paragraph 9 of the Stipulation and Order (Attachment 1). However, prior to completing the evaluation and fulfilling the requirements of the Board Order, initiated the practice of professional counseling and psychotherapy with Adams County Mental Health Center.

6. The Board-approved evaluator determined that respondent still has a physical or mental disability which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care.

7. Respondent practiced professional counseling and psychotherapy without being evaluated and found safe to practice as required by Board Order, in violation of C.R.S. §12-43-704(1)(b).

8. Respondent practice professional counseling and psychotherapy while she has a physical or mental disability which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care, in violation of C.R.S. §12-43-704(1)(f) and (g).

9. Based on all information available to the Board in this matter, including information recited herein, reasonable grounds exist to believe, and the Board determines that violations of C.R.S. §12-43-704(1) have taken place and such violations along with the fact that respondent still has a physical or mental disability which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care, creates an emergency condition which may affect the health, safety or welfare of a person or persons in the State of Colorado.

THEREFORE, IT IS HEREBY ORDERED, pursuant to C.R.S. §12-43-704.5(4)(a), that Jean Mathews, M.A., LPC AKA Jean Mathews-Powers, M.A., LPC, immediately CEASE AND DESIST from the practice of professional counseling and psychotherapy in the state of Colorado, including all activities that constitute professional counseling and psychotherapy, as defined in C.R.S. §§12-43-601(4) and 12-43-201(9), and all prohibited activities, as set forth in C.R.S. §12-43-704(1). Respondent may request a hearing on the question of whether any violation occurred if such request is made within thirty days after the date of service of this order to Cease and Desist.

ORDERED this 23rd day of January, 1996.


AMOS D. MARTINEZ
Program Administrator
State Grievance Board